Himalaya Crest Realty (Pvt.) Ltd. - Policies and Terms

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Fictional company created for software testing.

1. Purpose and scope

This document sets out the policies and terms that apply when a client deals with Himalaya Crest Realty (HCR). It covers booking, cancellation, refunds, late payment, transfers, rental terms, deposits, maintenance responsibility, privacy, complaints, conduct and dispute resolution. It closes with a revision history so that clients can see which values have changed.

The policies apply to all four offices: the Head Office in Islamabad and the branches in Rawalpindi, Abbottabad and Lahore. They are written to be read together with the Property Listings document, which gives the price, token and payment plan of each property, and the Services and Fees document, which explains the company's fees.

HCR follows a simple rule when writing policy: every number a client may need must be written down, with an effective date, before the client commits. Where a policy gives a number of days, "days" means calendar days unless the text says "working days". Working days are Monday to Friday.

Government charges connected with any sale, purchase, transfer or tenancy are payable by the client and are not included in company fees. No government rates are stated in any company document, and clients should ask the relevant authority for them.

2. Definitions

The following terms are used throughout this document.

Term	Meaning
Client	A buyer, seller, landlord, tenant, owner or investor who deals with HCR
Booking	The act of reserving an available property by paying the booking token
Booking date	The date on which the booking token is received and recorded by the finance team
Booking token	An advance equal to 2% of the property price, counted toward the down payment
Instalment	One scheduled payment under a payment plan
Overdue	Unpaid after its due date
Working days	Monday to Friday
Days	Calendar days, unless "working days" is stated

The booking token is known in local usage as bayana. A written agreement between buyer and seller is an iqrarnama, and the registered sale deed is the registry. These local terms are explained in full in the FAQs document.

3. Booking policy

3.1 Who can book

Only a property whose status is **available** can be booked. A property whose status is **reserved** has already been booked by another client and cannot be booked by anyone else unless that reservation is cancelled. A property whose status is **sold** is listed for reference only.

3.2 The booking token

The booking token is 2% of the property price. It is paid when the client decides to proceed and it is recorded by the finance team, which issues a written receipt called a rasid. The token is not a company fee. It forms part of the price paid for the property and is counted toward the down payment of the chosen payment plan.

Some examples show how the token follows from the price:

- HCR-ISB-0101, price PKR 18,500,000: token PKR 370,000.

- HCR-RWP-0205, price PKR 24,500,000: token PKR 490,000.
- HCR-ISB-0107, price PKR 62,000,000: token PKR 1,240,000.
- HCR-ATD-0303, price PKR 9,500,000: token PKR 190,000.

3.3 Written payment schedule

The documentation team will not forward a booking until the client has received the written payment schedule. The schedule states the plan code, the down payment, the number and dates of instalments, the surcharge and the handover date. A client who finds any difference between the schedule and the Property Listings document should ask the consultant to correct it in writing before signing.

3.4 Payment plans

Four plans are available. Each property is offered under one plan, shown in the Property Listings document.

Plan	Down payment	Instalments	Duration	Frequency	Surcharge
PP-A	40%	4	12 months	Quarterly	0%
PP-B	30%	8	24 months	Quarterly	4%
PP-C	20%	24	24 months	Monthly	6%
PP-D	25%	36	36 months	Monthly	9%

The surcharge is a percentage of the property price and is added to the total payable. The booking token is counted toward the down payment. For example, a booking of HCR-ISB-0101 on plan PP-B has a surcharge of PKR 740,000 and a down payment of PKR 5,550,000, of which the token of PKR 370,000 is already paid, leaving PKR 5,180,000 due.

3.5 Reservation of a booked property

Once the token is paid and recorded, the property is shown as reserved and no other client can book it. The reservation lasts for as long as the booking remains in force. If the booking is cancelled, the property may return to available status.

4. Cancellation and refund policy

4.1 How to cancel

A client who wishes to cancel a booking must send a written request by email to bookings@himalayacrest.example. A telephone call alone is not a cancellation. The date on which the email is received is the date used to decide which refund window applies.

4.2 Refund windows for the token

The refund of the booking token depends on how many days have passed since the booking date.

Window	When the cancellation is requested	Deduction	Share of token refunded
Window 1	Within 7 days of the booking date	10%	90%
Window 2	From day 8 to day 30	50%	50%
Window 3	After day 30	Token not refundable	0%

4.3 Worked refund examples

- A token of PKR 370,000 cancelled on day 5 falls in Window 1. The deduction is 10%, which is PKR 37,000, so the refund is PKR 333,000.
- A token of PKR 370,000 cancelled on day 20 falls in Window 2. The deduction is 50%, which is PKR 185,000, so the refund is PKR 185,000.
- A token of PKR 550,000 cancelled on day 25 falls in Window 2. The refund is 50%, which is PKR 275,000.
- A token of PKR 1,240,000 cancelled on day 3 falls in Window 1. The deduction is PKR 124,000, so the refund is PKR 1,116,000.
- A token of PKR 190,000 cancelled on day 45 falls in Window 3. No refund is due.

4.4 Refund of amounts paid beyond the token

Where a client has paid more than the token, for example part of the down payment or one or more instalments, the amount paid beyond the token is refunded less a 15% deduction. If a client has paid PKR 2,000,000 beyond the token, the deduction is PKR 300,000 and the refund is PKR 1,700,000. This deduction is separate from the token windows in section 4.2.

4.5 Refund timing

A refund is paid within 21 working days of approval. Approval and payment are handled by the finance team under the Finance and Accounts Manager, Usman Gillani (usman.gillani@himalayacrest.example, +92 51 5550 1017). Clients with questions about the status of a refund should quote the booking receipt number and the property ID.

4.6 Cancellation of a viewing

A viewing is not a booking, and no money is involved. A viewing may be cancelled by giving at least 24 hours notice to the branch that arranged it. There is no charge for cancelling with proper notice.

5. Late payment policy

5.1 Grace period

An instalment that is not paid on its due date is not penalised immediately. The client has a grace period of 10 days after the due date.

5.2 Late-payment penalty

After the grace period ends, a penalty of 0.1% of the overdue instalment is charged for each day the instalment remains unpaid. The total penalty on any one instalment is capped at 5% of that instalment.

Overdue instalment	Penalty per day	Cap (5%)	Day on which the cap is reached
PKR 500,000	PKR 500	PKR 25,000	Day 50 of the penalty
PKR 1,000,000	PKR 1,000	PKR 50,000	Day 50 of the penalty
PKR 2,000,000	PKR 2,000	PKR 100,000	Day 50 of the penalty

Because the daily rate is 0.1% and the cap is 5%, the cap is reached after 50 days of penalty on every instalment, whatever its size.

5.3 Cancellation for non-payment

HCR may cancel a booking for non-payment only when two conditions are both met: the instalment has been overdue for 60 days, and the company has given the client 15 days written notice. Refunds after such a cancellation follow the rules in section 4.

5.4 Reminders

The Client Services Centre sends payment reminders before each due date. A reminder is a courtesy; the due date in the written payment schedule is what counts.

6. Transfer policy

6.1 What a transfer is

A transfer lets a client who has booked a property pass the booking to another person. The new person takes over the schedule of payments that remain.

6.2 Conditions

- The transfer fee is 1% of the property price, with a minimum of PKR 50,000.
- A transfer is not allowed within the first 30 days after booking.
- Processing takes 10 working days from the date the complete request is received.
- Requests are sent to bookings@himalayacrest.example.

6.3 Worked transfer examples

- HCR-ISB-0101, price PKR 18,500,000: 1% is PKR 185,000.
- HCR-ATD-0303, price PKR 9,500,000: 1% is PKR 95,000.

- HCR-ISB-0105, price PKR 16,000,000: 1% is PKR 160,000.
- HCR-LHR-0402, price PKR 33,500,000: 1% is PKR 335,000.
- A property priced at PKR 4,000,000: 1% is PKR 40,000, which is below the minimum, so PKR 50,000 applies.

6.4 Documents for a transfer

The documentation team prepares the transfer papers. Where the current holder appoints another person to sign on their behalf, a mukhtarnama (power of attorney) is prepared. Documentation support is charged separately at PKR 35,000 per transaction, as explained in the Services and Fees document.

7. Rental terms

These terms apply to tenancies arranged through the rental service (SVC-RENT) and to lets managed under the property management service (SVC-PM).

7.1 Rental commission

The rental commission is shared equally. The landlord pays 50% of one month's rent and the tenant pays 50% of one month's rent, with a minimum of PKR 10,000 for each side.

7.2 Security deposit

The deposit is 2 months of rent. For a monthly rent of PKR 80,000 the deposit is PKR 160,000. The deposit is held for the length of the tenancy and is returned within 14 days after the unit is handed back, once the condition of the unit has been checked.

7.3 Notice periods

Party	Notice required
Tenant leaving the unit	30 days
Landlord ending the tenancy	60 days
Either side ending a management agreement	45 days

All notices must be in writing. A tenant's or landlord's notice for a managed let should be sent to rentals@himalayacrest.example.

7.4 Rent and receipts

Rent is paid on the date stated in the tenancy agreement. For managed properties, the management team collects the rent and issues a receipt for each payment. The owner receives a regular report showing the rent collected and the management fee deducted.

7.5 Management fee

The management fee is 8% of the monthly rent collected, with a minimum of PKR 6,000 per month. At a rent of PKR 120,000, the fee is PKR 9,600 per month. At a rent of PKR 60,000, 8% would be PKR 4,800, so the minimum of PKR 6,000 applies.

8. Maintenance responsibility

8.1 Minor repairs

The tenant is responsible for minor repairs of up to PKR 10,000 per item. This covers the ordinary small repairs that arise from daily use of the unit.

8.2 Larger repairs

Repairs above PKR 10,000 per item are the responsibility of the owner. A tenant who notices a larger problem should tell the landlord, or the management team where the property is managed, without delay.

8.3 Managed properties

For properties under the management service, the team coordinates repairs with approved contractors and informs the owner of the work done. Evergreen Facilities Group is one of the independent contractors that may be engaged for this work. The owner is not required to use any particular contractor outside the management service.

8.4 Handing back the unit

At the end of a tenancy the tenant hands back the unit in the condition in which it was received, allowing for ordinary use. The 14-day period for returning the deposit starts on the day the unit is handed back.

9. Privacy and data

9.1 What data is held

HCR holds the information that clients give it in order to deal with them: names, contact details, identity papers needed for agreements, payment records and the documents of each transaction. The company uses this information only to provide its services, to meet its record-keeping needs and to answer client questions.

9.2 Who can see it

Client information is available to the staff who need it for a transaction. The company does not sell client information. Independent partners, such as a legal reviewer or surveyor, receive only what is needed for the task a client has asked them to do.

9.3 Retention

Client records are kept for 7 years after the last transaction. After that period they are reviewed for secure disposal.

9.4 Requests about data

A client who wishes to see, correct or ask about the data the company holds should write to privacy@himalayacrest.example. The company will acknowledge the request and reply in writing.

10. Complaints policy

10.1 How to complain

A client may complain about any service, fee, staff member or document. Complaints can be sent to complaints@himalayacrest.example, made by telephone on +92 51 5550 1003 or handed in at any office. The Compliance and Complaints Officer, Saima Iqbal (saima.iqbal@himalayacrest.example, +92 51 5550 1018), receives and tracks every formal complaint and makes sure the response times below are met.

10.2 Response times

Step	Time limit
Acknowledgement of the complaint	Within 2 working days
Resolution of the complaint	Within 15 working days
Chief Operating Officer decision, if escalated	Within 5 working days
Chief Executive Officer final review	Decision within 30 days of the escalation

10.3 Escalation path

1. The complaint is first handled by the named owner assigned by the Compliance and Complaints Officer.
2. If it is not resolved within 15 working days, the client may escalate it to the Chief Operating Officer, Sana Qadri (sana.qadri@himalayacrest.example, +92 51 5550 1011). She gives a decision within 5 working days.
3. If the client remains unsatisfied, the complaint goes to a final review by the Chief Executive Officer, Farhan Mirza (farhan.mirza@himalayacrest.example, +92 51 5550 1010). He decides within 30 days of the escalation.

10.4 Principles

Every complaint has a named owner, and nobody is passed from desk to desk. A client is never treated less well for having complained. The Client Services Centre reviews complaint themes every month, and the findings are used to improve forms, brochures and procedures.

11. Code of conduct

HCR is a member of the Fictional Association of Realty Professionals (FARP), membership number FARP-2015-3381, and its staff follow the association's published standards of conduct. The company's own code rests on its five core values: transparency, accountability, patience, local knowledge and respect for the client.

11.1 What clients can expect

- Fees, payment schedules and conditions are written down before a client commits.
- Consultants explain options, state their recommendation openly and leave the decision to the client.
- Valuations are written without input from the sales team, so that a value is never shaped by a commission.
- Clients are given time to compare, to revisit and to ask the same question twice.
- Clients are free to use their own lawyer, surveyor or contractor.

11.2 What the company expects of staff

- Staff must give accurate information about a property and must not hide its status. A reserved property is described as reserved and a sold property as sold.
- Staff must quote only current fees and policy values.
- Staff must not accept payments except against a written receipt.
- Staff must declare any personal interest in a property they are asked to sell or value.

11.3 What the company expects of clients

Clients are asked to give true information, to pay on the dates in their schedule, to give notice in writing where this document requires it and to treat staff and other clients with courtesy.

12. Dispute resolution

HCR prefers to settle disagreements by talking them through. The steps are:

1. **Discuss.** The client raises the matter with the consultant or branch manager, who tries to settle it directly.
2. **Complain.** If the matter is not settled, the client makes a formal complaint under section 10.
3. **Escalate.** The client may escalate to the Chief Operating Officer and then to the Chief Executive Officer, following the time limits in section 10.2.
4. **Independent review.** At any stage a client may ask an independent legal reviewer of their own choosing to look at the agreement. Northern Legal Associates can be asked to review agreements on request, but a client is never required to use them.

The company will cooperate with any adviser a client appoints and will provide copies of the documents relating to the transaction on request.

13. Documents and records

13.1 Receipts

Every payment to the company is acknowledged by a written receipt. Clients should keep all receipts for the whole 7-year record period and should not pay any person who cannot give one.

13.2 Agreements

Agreements are prepared and checked by the documentation team, led by Ayesha Nawaz (ayesha.nawaz@himalayacrest.example, +92 51 5550 1013). A client receives a copy of every agreement they sign.

13.3 Seller listing agreements

A listing agreement with a seller runs for 90 days and can be renewed. The seller may cancel it by giving 7 days written notice.

14. Contact points for policy questions

Topic	Contact
Bookings, cancellations, transfers	bookings@himalayacrest.example
Refunds and receipts	Usman Gillani, +92 51 5550 1017
Complaints	complaints@himalayacrest.example, +92 51 5550 1003
Data and privacy	privacy@himalayacrest.example
Rentals and management	rentals@himalayacrest.example, +92 51 5550 1005

Topic	Contact
General questions	info@himalayacrest.example, +92 51 5550 1001
Client Services Centre	+92 51 5550 1002

15. Additional Information

Clients sometimes ask which of the cancellation rules applies when they have both paid the token and made an instalment payment. The token follows the windows in section 4.2, and the amounts paid beyond the token follow the 15% deduction in section 4.4. The two are calculated separately and then added together.

For a client who booked HCR-ISB-0104, whose token is PKR 550,000, and cancels on day 6, the token refund is PKR 495,000, because the 10% deduction is PKR 55,000. If the same client had paid PKR 1,000,000 beyond the token, that amount would return PKR 850,000, because the 15% deduction is PKR 150,000.

Late-payment penalties are calculated only on the overdue instalment itself, not on the total price. The grace period of 10 days comes first, and the daily penalty is counted only for days after the grace period.

A transfer cannot be requested during the first 30 days after booking, which is the same length of time as the second refund window. A client who is unsure about a purchase should therefore consider a cancellation, not a transfer, in that first month.

The notice periods in this document are deliberately different for the two sides of a tenancy: 30 days for the tenant and 60 days for the landlord. The management agreement notice period of 45 days is separate from both and applies to either side of that agreement.

16. Revision history

Values marked superseded are no longer in force. The body of this document states only current values, and the table below is provided so that clients can see what changed and when.

Item	Superseded value	Old effective period	Current value	Current from	Status of old value
Booking token	3% of price	1 March 2019 to 31 December 2023	2% of price	1 January 2024	superseded
Refund window 1 length	14 days	1 March 2019 to 31 December 2023	7 days	1 January 2024	superseded
Late-payment penalty	0.15% per day	1 July 2021 to 30 June 2023	0.1% per day	1 July 2023	superseded
Rental deposit	3 months of rent	1 June 2018 to 31 May 2022	2 months of rent	1 June 2022	superseded
Valuation fee, up to PKR 10,000,000	PKR 12,000	1 January 2023 to 31 December 2024	PKR 15,000	1 January 2025	superseded
Buying commission, Slab 1	2.5%	1 January 2023 to 28 February 2025	2.0%	1 March 2025	superseded

This document is reviewed once a year, or sooner if a policy value changes. The current version is 4.0, effective 1 June 2026, and it is owned by the Compliance department.